

NON-DISCLOSURE AGREEMENT (Sample)

This Non-Disclosure Agreement ("Agreement") is made and entered into on [Date]
between:

Disclosing Party: [Company/Individual Name]

Address: [Address]

Receiving Party: [Company/Individual Name]

Address: [Address]

1. Purpose

The Disclosing Party intends to share certain confidential information with the Receiving Party for the purpose of [describe purpose, e.g., "evaluating a potential business relationship"].

2. Definition of Confidential Information

"Confidential Information" means any non-public, proprietary, or sensitive information disclosed orally, in writing, or by any other means, including but not limited to business plans, financial data, customer lists, trade secrets, designs, or technical know-how.

3. Obligations of the Receiving Party

The Receiving Party shall:

- Use the Confidential Information only for the stated purpose.
- Keep the Confidential Information strictly confidential and use at least reasonable care to protect it.
- Not disclose any Confidential Information to any third party without prior written consent of the

Disclosing Party.

- Promptly notify the Disclosing Party of any unauthorized disclosure or use.

4. Exclusions

The obligations in this Agreement do not apply to information that:

- Was already known to the Receiving Party before disclosure;
- Becomes publicly available through no fault of the Receiving Party;
- Is received from a third party lawfully and without confidentiality obligations; or
- Is independently developed without using the Disclosing Party's confidential information.

5. Term and Termination

This Agreement begins on the Effective Date and remains in effect for [e.g., two (2) years] after termination.

Either party may terminate this Agreement with [e.g., 30 days] written notice, but confidentiality obligations continue for the stated survival period.

6. Return or Destruction of Information

Upon request or termination, the Receiving Party shall promptly return or destroy all Confidential Information, including copies, and certify such destruction if requested.

7. No License or Warranty

This Agreement does not grant any license or other rights to the Confidential Information except as expressly set forth. The Disclosing Party makes no warranties regarding the information.

8. Governing Law

This Agreement is governed by and construed under the laws of [State/Country].

9. Signatures

Disclosing Party: _____

Name & Title: _____

Date: _____

Receiving Party: _____

Name & Title: _____

Date: _____